

26CV00655 JPMorgan Chase Bank NA vs Serene F Summerfield

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-09-21

Motion: Motion to Set Aside Judgment

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Tentative Ruling: JPMorgan Chase Bank NA vs Serene F Summerfield

Case Number

26CV00655

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 09/21/2026 - 10:00

Nature of Proceedings

Motion to Set Aside Judgment

Tentative Ruling

On May 4, 2026, a clerk's default judgment was entered in favor of plaintiff JPMorgan Chase Bank NA against defendant Serene F. Summerfield in the amount of \$16,827.99. On June 2, 2026, defendant filed this motion to set aside the default judgment. No opposition or other response has been filed as to this motion.

The proof of service for the motion states that the motion was served by mail on counsel for plaintiff, attorney Peter Tran, Sutell & Hammer, P.C., P.O. Box C-90006, Bellevue, WA 161630. The correct ZIP code for counsel for plaintiff is 98009, as shown on the papers filed in support of the default judgment, as well as the complaint. "In the absence of proof notice was actually received, ... failure to use the correct zip code invalidates what would have otherwise been sufficient notice." (Moghaddam v. Bone (2006) 142 Cal.App.4th 283, 288.) Thus, service as set forth in the proof of service is invalid. The hearing on the motion is continued to December 14, 2026, at 10:00 a.m. Plaintiff shall serve the motion and its supporting papers, together with notice of this continued hearing date and time, and shall file proof of such service on or before October 12, 2026

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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